

TENTATIVE RULING(S) FOR June 17, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2402797

County v. Turtle Cove Marina

TENTATIVE RULING(S):

Plaintiff San Bernardino County's Motion to Compel the Deposition of Defendant Turtle Cove's PMK. Defendant Turtle Cove opposes. Plaintiff County relies.

Meet and Confer

The County seeks to compel Turtle Cove's deposition under Code of Civil Procedure section 2025.450, subdivision (a). However, section 2025.450 is inapplicable because Turtle Cove served a timely objection to the deposition notice. Therefore, the County's motion is best subject to Code of Civil Procedure section 2025.480, which requires a declaration that complies with 2026.040, subdivision (a). The County did not provide the required declaration.

The County's declaration does not provide facts to show it made "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).)

Although the County failed to properly meet and confer, the Court elects to consider the merits of this motion to prevent the need for any further law and motion on this issue.

Merits

The County argues that Turtle Cove's deposition must be compelled because it properly noticed the deposition, the deposition sought testimony on relevant topics, and Turtle Cove failed to appear.

In opposition, Turtle Cove argues that the County's motion should be denied because Turtle Cove timely objected to the deposition notice and that it was working to identify and prepare a new individual to testify. When it identified the alternate person most knowledgeable, after the County's motion was filed, Turtle Cove offered the County dates for the deposition to go forward but the County did not respond. (Grijalva Decl. Exh. I.)

In reply, the County argues that Turtle Cove's objections did not excuse its attendance at the deposition on January 20, 2026, that Turtle Cove's offers to produce a deponent do not render the County's motion moot, and that the County cannot go forward with Turtle Cove's deposition because Turtle Cove has not yet produced documents it was ordered to produce on May 7, 2026.

The County's argument that Turtle Cove's objections did not excuse Turtle Cove's non-appearance is without merit. Turtle Cove timely objected and stated that it and its counsel were unavailable on the date set and made it clear that it was not going to appear. At that point, the County had an obligation to meet and confer, in good faith, by telephone, video conference, or in person, to resolve the objections and to obtain a new deposition date. (Code Civ. Proc., §§ 2025.480, subd. (b), 2016.040, subd. (a).)

Further, the County's argument that it cannot now take the deposition because Turtle Cove has not yet complied with a separate discovery order is improperly included in the reply. To the

extent the County believes Turtle Cove is not in compliance with a separate court order, the County can bring an appropriate motion addressed to that issue.

Given that there is no dispute that Turtle Cove's deposition should go forward, and that Turtle Cove has offered deposition dates, the Court ORDERS the parties to meet and confer in the next 5 days to come to a mutually agreeable date for the PMK's deposition within the next 30 days.

Sanctions

The County seeks \$2,193.50 in sanctions reflecting 10.7 hours of attorney time. The attorney time consists of 7.2 hours to prepare the motion, 3 hours to review the opposition and prepare the reply, and .5 hours to appear at the hearing at a billing rate of \$205. (Okada Decl. ¶ 13.) Given the death of Turtle Cove's person most knowledgeable and the County's failure to comply with its meet and confer obligations, the Court DENIES the County's request for sanctions as unjust under the circumstances.

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CIVSB2430096

Burgett vs Redwood Private Security

TENTATIVE RULING(S):

Before the Court is Defendant Fortes' Motion to Strike portions of Plaintiff's Complaint, relating to the allegations and prayers for punitive damages. Fortes specifically seeks to strike the following on the grounds that the Complaint contains conclusions, not factual assertions sufficient to establish oppression, fraud, or malice:

- 1) Plaintiff's prayers for punitive damages as stated in the Complaint, page 8, numbers 1(c), 2(c), and 3(c), lines 1, 7, and 13, reference to "for punitive and/or exemplary damages in an amount appropriate to punish Defendant and deter others from engaging in similar conduct."